

DPDP 2023

Digital Personal Data Protection Act, 2023

Applicable DPDP Acts

User Query : IIIT DELHI is using my data and selling it to third party organisation now it is available online

Job Id. : c8eb04ad-90ed-4308-b5fa-176ea7f084e3/DPDP Act

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INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

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The Digital Personal Data Protection (DPDP) Act, 2023 governs the processing of personal data in India. Based on the provided context, IIIT Delhi, as a data fiduciary, has collected and processed personal data, allegedly sold it to a third-party organization, and made it available online.

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Definitions: "Personal data" refers to any information that relates to a natural person who is identifiable by or in relation to such information. A "data fiduciary" is any person or entity that determines the purpose and means of processing personal data. "Processing" includes collection, storage, use, disclosure, and other operations on personal data.
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Rights of the Data Principal: The data principal has the right to access information about their personal data and to request correction and erasure of the same.
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Obligations of the Data Fiduciary: IIIT Delhi, as a data fiduciary, was obligated to process personal data for a legitimate purpose, collect only necessary personal data, and ensure storage limitation.

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STRENGTHS & RIGHTS

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Rights of data principals

The DPDP Act, 2023 empowers data principals with rights to access, correction, and erasure of their personal data.
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Protections and safeguards

The Act mandates data fiduciaries to implement reasonable security safeguards to protect personal data.

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RISKS & OBLIGATIONS

- 1

Liabilities

IIIT Delhi, as a data fiduciary, may face penalties for unauthorized collection, storage, or processing of personal data.
- 2

Compliance burdens

Data fiduciaries must implement data protection policies, conduct DPIAs, and notify the Data Protection Board in case of a data breach.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLAINTS AND GRIEVANCE REDRESSAL

1. Data principals can file complaints with the Data Protection Board regarding any grievances related to the processing of their personal data.

PENALTIES AND COMPLIANCE AUDITS

1. The Data Protection Board can impose penalties on non-compliant data fiduciaries and conduct audits to ensure compliance with the DPDP Act, 2023.
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